

*** § 9.48 Duties of directors of assisted outpatient treatment programs.**

(a)(1) Directors of assisted outpatient treatment programs established pursuant to section 9.60 of this article shall provide a written report to the program coordinators, appointed by the commissioner of mental health pursuant to subdivision (f) of section 7.17 of this chapter, within three days of the issuance of a court order. The report shall demonstrate that mechanisms are in place to ensure the delivery of services and medications as required by the court order and shall include, but not be limited to the following:

- (i) a copy of the court order;
- (ii) a copy of the written treatment plan;
- (iii) the identity of the case manager or assertive community treatment team, including the name and contact data of the organization which the case manager or assertive community treatment team member represents;
- (iv) the identity of providers of services; and
- (v) the date on which services have commenced or will commence.

(2) The directors of assisted outpatient treatment programs shall ensure the timely delivery of services described in paragraph one of subdivision (a) of section 9.60 of this article pursuant to any court order issued under such section. Directors of assisted outpatient treatment programs shall immediately commence corrective action upon receiving notice from program coordinators, that services are not being provided in a timely manner. Such directors shall inform the program coordinator of such corrective action.

(b) Directors of assisted outpatient treatment programs shall submit quarterly reports to the program coordinators regarding the assisted outpatient treatment program operated or administered by such director. The report shall include the following information:

- (i) the names of individuals served by the program;
- (ii) the percentage of petitions for assisted outpatient treatment that are granted by the court;
- (iii) any change in status of assisted outpatients, including but not limited to the number of individuals who have failed to comply with court ordered assisted outpatient treatment;
- (iv) a description of material changes in written treatment plans of assisted outpatients;

(v) any change in case managers;

(vi) a description of the categories of services which have been ordered by the court;

(vii) living arrangements of individuals served by the program including the number, if any, who are homeless;

(viii) any other information as required by the commissioner of mental health; and

(ix) any recommendations to improve the program locally or statewide.

(c) Directors of assisted outpatient treatment programs providing services described in paragraph one of subdivision (a) of section 9.60 of this article pursuant to any court order issued under such section shall evaluate the need for ongoing assisted outpatient treatment pursuant to subdivision (k) of section 9.60 of this article prior to the expiration of any assisted outpatient treatment order; and shall notify the director of community services of the new county of residence when he or she has reason to believe that an assisted outpatient has or will change his or her county of residence during the pendency of an assisted outpatient treatment order. Upon such change of residence, the director of the new county of residence shall become the appropriate director, as such term is defined in section 9.60 of this article.

* NB Repealed June 30, 2027